GN
versus
SN

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE 12, 13, 26, 28 November, 3 December 2025 and 6 February 2026

Matrimonial Trial

G. Maseko for Plaintiff
F. Chinyama for Defendant

TSANGA J:

This matter comes before the Court for determination of issues relating to the custody and maintenance of the parties' four minor children, aged approximately 10, 8, 6 and 3 years at the time of trial. The parties are agreed that their marriage has irretrievably broken down and that a decree of divorce should be granted. They are also agreed on the division of matrimonial property, including that the matrimonial home, being Stand 21051 Budiriro, Harare, will be shared equally, with the plaintiff purchasing the defendant's share. The plaintiff, (GN) will also meet the costs of evaluation. The children have been residing with the defendant, (SN) their mother, in the Budiriro home since the plaintiff moved out of the family home approximately three and a half years ago.

The Plaintiff's Evidence

GN testified that he moved out as a result of constant harassment by SN, including allegations of violence which resulted in multiple arrests. Only two of those matters proceeded to court, and he was acquitted on appeal in one. He has a protection order against him. His chief testimony in motivation of custody was that SN is unable to maintain a clean home, cook adequately, bathe or properly care for the children or do laundry. He alleged that under her care the children are always sick and have skin conditions due to uncleanliness. He also recounted an incident where the eldest child sustained a burn from cooking oil while unsupervised, and that SN merely wrapped the child's arm in a cloth. He further asserted that SN has difficulty remembering things due to alleged defects when she was born, including an inability to hear or speak for some time prior to receiving prayers.

Currently he has an access order allowing him to spend time with the children from Friday to Sunday each week, but he testified that SN causes trouble during exchanges. He stated that he provides for the children's needs by buying groceries, paying their school fees and communicating with their teachers. He further stated that the children have indicated that they want to stay with him and that they cry at the end of his access periods.

He also complained that SN gives away groceries to her parents or neighbours rather than using them for the children, and that he has photographic evidence of his own grocery purchases. He contended that his financial means, contrasted with what he described as SN's inability to provide financial support, make him a more suitable custodial parent. He further opined that her low level of education renders her incapable of supervising the children's homework.

GN therefore proposes that the children reside with him at his parents' home, where his parents, both pastors about to retire, would be available to assist with childcare. He also proposes that the youngest child remain with SN while he has weekend access. He complained that SN has refused to give him access to the youngest child despite his contributions to the child's upkeep.

Under cross-examination when it was pointed out that he travels with his job, he highlighted that as a self-employed person he would be able to make time to be with the children but reiterated the reliance he would mainly place on his parents and a domestic helper for assistance. He continued to attribute blame to SN for the burn injury to the eldest child despite it having occurred when she was not present and when the child was in the care of a child minder. He defended his criticisms of the cleanliness of the home notwithstanding the ages of the children.

The Defendant's evidence

SN called the owner of the children's school PT, who testified that SN's complaints about one of the school's staff members being in a relationship with GN had brought them in contact. She had later found that her complaints were in fact founded and the said teacher who has since had a baby with GN had told her personally and apologised. As such the allegations of SN's supposed mental instability lacked basis. She testified that GN generally has good relations with teachers and that this could have influenced the Social Welfare Officers' report.

SN herself testified that marital problems began when GN became involved with a teacher at the children's school, ceased intimacy with her and started accusing her of being

dirty. She denied the allegations of neglect and explained that if the home was untidy, domestic duties were shared responsibilities. She denied ever having a speech or hearing impairment. As for her supposed lack of education, she testified that she had completed O-Level education and subsequently done courses in cake icing, interior décor and beading.

She denied allegations that the children are sick all the time, and explained the circumstances surrounding the burn incident. Save for a full picture showing the eldest child with a bandage from the burn, she further denied that the photographs relied upon by GN were those of her children. These depicted in particular a child's swollen stomach without showing the face and another which showed a child's body riddled with a skin rash, again minus the face. The grave implication was that GN had put up false pictures to bolster his narrative of neglect. She also raised a red alert on letters of referral procured by GN for the children without her knowledge, to a supposed specialist doctor that did not identify to whom the children were being referred. She further highlighted that contrary to GN's assertions that she suffers from mental problems, a specialist doctor had in fact found her to be normal. She also denied GN's accounts of the children's emotional responses, describing instead that the children feared the plaintiff and preferred to stay with her. She opposed GN's proposal to separate the youngest child from the others and expressed the view that the matrimonial home should remain hers for the sake of the children's stability.

She also gave evidence of abusive conduct by GN during the marriage, which resulted in her obtaining a protection order against him. She denied beating GN and described his behaviour as abusive, controlling and manipulative. The children had told her that he had told them blankly that if they want their phones they should come and stay with him. He has also taken their bicycles to his parent's home. To make matters worse for the children, she said GN is always telling them that she is a mental case. He had said that in front of a teacher at school and it had affected the child when the other children had started referring to his mother as mental. He also does not attend consultation days. As for his care for the last-born child, he has not done so much as he bought her pampers when she was born and has no relationship at all with the child. The child even refers to him as uncle. None of the children have a bond with him because he is not always present. She further described him as not an easy person and the children generally do not want to speak with him on the phone.

According to SN, she has been responsible for the children's care since GN left. She is assisted by a domestic helper whom she pays. She explained that the children's homework

challenges were due to limited access to a single phone and lack of data, and that GN took away the children's phones.

SN also described limitations in financial support from GN, stating that he had brought groceries on only three occasions in the year. She stressed that he does not know what kinds of foods to buy for children and blamed occasional stomach aches on the father for buying them acidic drinks. On groceries needed, she said he does not like being told what to do so she has never sent him a list. He does not give her US$50.00 a month contrary to his testimony.

She earns approximately US$300–US$400 per month, of which she spends a portion on a domestic helper, gas, electricity and groceries. As for his exact contribution towards maintenance costs, she would want him to pay rates and give her money to buy food, pay for the children's clothing and also help with the costs of the domestic worker. In addition, he must also pay school fees for the children. She clarified to the court that she would like him to contribute at least US$60.00 per child for groceries.

In cross examination she was asked to respond to attachments that showed the children had been to the doctor and she was able to show that they all seemed to be from the same doctor on the same day and the so-called referrals were not even addressed to a particular doctor. Another letter she was pointed to purportedly as showing her mental instability were essentially consultations notes in which GN himself was telling the doctor what he thinks is wrong with his wife. It is not disputed that a referral to a specialist doctor showed that she does not suffer from any mental instability.

Social Welfare Report

The court requested a social welfare report prior to trial. The evidence led above was therefore also against a backdrop where the court had the views of a Social Welfare Officer about what they had observed in talking to the parties, the school authorities and the eldest child in particular. The Social Welfare Officer's report was clear that at no point in interviewing SN's family, was there any mention of her limited capacity. Her childhood development history also lacked any trace of the impairments that GN spoke about. The report narrated how they had found the house dirty and not child sensitive or friendly at all when they visited SN for the assessment. Photographs were not provided. A critical comment emerges from the report which is to the effect that both parties tended to engage in combat by soiling each other's name even if it meant lying against the other. This was a tendency found to be most pronounced GN.

Regarding their visit to the school the officer explained that this was primarily prompted by the SN's allegation that her husband was having an affair with a teacher at the school who was the reason for her suffering. GN himself had told the officer that he has good relations with the school and sometimes even lends them a vehicle to run school errands. The report also stated that the team wanted to solicit opinions over the general presentation of the children at school. The school head was the one who reported compulsive behaviour on the part of SN as she had sought help from him on a non-school related issue which from hearing the evidence led, turns out to be the affair with the school teacher.

The welfare officer spoke to the eldest child who expressed that his wish was to stay with both parents though he was not happy with the mother's violent behaviour towards the father. He could not understand why the father was no longer part of the family. The report noted that GN is self-employed and operates a spare parts dealership in town. His net income is US$3500.00 from what he told Social Welfare Officer which combines US$1500.00 he gets as a distributor of PUMA fuel products and an additional US$2000.00 from his business after expenses. The report concluded that as the father he is playing his role in paying fees and that issues of the children's presentability and doing their homework falls on the mother who has custody.

SN herself was acknowledged to be a loving mother despite all the weaknesses observed and if assisted can be a better parent. She was said to be overwhelmed. They recommended that the youngest child remains with her and that she has access to the other children every two weeks and during holidays.

Issues for Determination

The primary issues for determination are:

1. Custody of the minor children
2. Maintenance of the minor children

The Law

Section 81(2) of the Constitution of Zimbabwe provides that a child's best interests are paramount in every matter concerning the child. This principle is echoed in the Guardianship of Minors Act [Chapter 5:08] and consistently applied by our courts.

In determining custody, the court considers, inter alia:

- Continuity of care

- The emotional, physical, and psychological welfare of the children
- The ability of each parent to provide day-to-day care
- The desirability of keeping siblings together
- The credibility of the parties

Fitness of a parent, age of the child, sex of the child and the length of time a child has lived with either parent are all considerations that courts have also taken into account in determining the best interests of a child. SEE *Hackim* v *Hackim* 1988 (2) ZLR 61; *Chitongo* v *Chitongo* 2000 (1) ZLR 76.) *Jere v Chisunge* 2003(1) ZLR 116 (H) On the need to avoid sibling separation see *Tangirai v Tangirai HH 65/13*

ANALYSIS

Custody

The report recommended that custody be awarded to the plaintiff. The Court notes concerns raised in court by the school owner in distancing herself from elements of the report that teachers may have been influenced by the plaintiff. They do occasionally receive gifts. The plaintiff himself stated to the Social Welfare Officer when they spoke to him that the school has used his car to run school errands. The defendant in her evidence also depicted plaintiff's use of rewards to influence the children's preferences. The court is mindful that a Social Welfare report, while valuable, is not determinative if there is evidence of potential manipulation of those who gave its contents. Having heard the evidence in its totality, it cannot be overlooked that the plaintiff 's manipulative character may have had an influence on what some of the school authorities had to say in his favour and also the noted ambivalence of the child. It was in fact also disturbing to the court that the plaintiff had used faceless pictures showing torsos only, presumably plucked from the internet, to try and depict the children as malnourished. It was deeply disturbing that the evidence challenged in court showed that he had also gone to great lengths to obtain doctors' referral letters referring him to no doctor in particular. He had also at one time asked school authorities to pen a letter in his favour. Indeed, as observed by the Social Welfare Officer and by the court itself, he had a tendency to use anything to soil the image of the defendant as the mother of his children. Allegations of mental instability were not substantiated and were contradicted by objective medical evidence. The court is further concerned by evidence of manipulation, denigration of the defendant in the presence of the children, and the use of material incentives to influence the children's preferences.

On the issue of the cleanliness of the house, the comparator was his parents' house which welfare team found to be clean and child friendly. Since what matters are the best interests of the child, it stands to reason that bad housekeeping *by itself* cannot be enough to change custody. What matters is a child's welfare. Whilst the Social Welfare Officer's report did capture that they found the home unkempt, disorganised and untidy, the impression was not that the children were in grave danger as a result of the observed mayhem. Housekeeping becomes legally relevant when it crosses into neglect or endangerment. In other words, the report was not that there was an immediate health or safety risk or that the home was dangerous. The court also has to consider that there are four children in the house who are all very young and that the Social Welfare team was comparing the defendant's house condition with the plaintiff's parents' house where only adults live. Moreover, the defendant says she has housekeeping support. Her emotional bond with the children and history of being their care giver is in this instance an important consideration. In the absence of any direct assertions by the social welfare team that the house actually endangers the children, what this court gleaned even from the plaintiff himself was that there was a state of general disorganisation on the part of the defendant. The Social Welfare Officer's report noted that she is overwhelmed and can be helped as opposed to an immediate danger or health issues linked to the home.

Whilst noting that the plaintiff travels a lot, the social welfare officer recommended that he be given the children on the basis that his parents would help him look after those children. Their house was cleaner and therefore a good environment for the children. The children would also get support with their homework. Granted the plaintiff wants custody awarded to him as opposed to the defendant their mother. While he stated that as a self-employed person he would be able to work from home and create time for his children, it was manifest from the evidence as a whole that he was nailing his mast for his proposed parenting framework on his parents' retirement, their cleaner home and their availability.

It is this court's finding that the defendant gave reasonable explanations for the children's presentation at school on certain days, including lack of soap and the children having a single set of school uniforms, and explained that attendance at school and homework completion is hampered by limited access to devices. This is also against the backdrop of his inconsistent financial contributions. The plaintiff's proposal would also effectively place the children under the care of third parties, his parents and a domestic

worker rather than under his direct care. While extended family support is not undesirable, it cannot outweigh the benefits of maternal continuity, particularly for young children.

Courts generally lean towards minimum disruption of children's lives which will already be affected by their parents' alienation from each other. Stability and continuity are considered vital particularly in their physical surroundings, school, friends and above all brothers and sisters. See *De Montille v De Montille* 2003(1) ZLR 240 (H) and also *Makumbe v Chikwenhere 2003 (1) ZLR 372 (H)*

Granted the plaintiff is not seeking that custody be awarded to his parents but in essence he would be the conduit for their *de facto* even if not *de jure* custody in so far as he admitted that great reliance in looking after the children would be placed on his parents who are about to retire, and would have plenty of time on their hands. The remarks by Goldin AJA in *W* v *W* 1981 ZLR 243 A are therefore particularly apt:

> "In deciding what is in the best interests of a child, the court generally has regard to the relative merits only of the parents. Grandparents are considered useful baby-sitters and a source of help in times of need or mere convenience. They are also 'first reserves' when natural parents or a surviving parent are held not to be proper persons to whom to award custody. The natural affinity and emotional bond and attachment between parent and child are generally irreplaceable and an accepted fact of life. Such an association benefits and promotes a child's emotional security and feeling of normality, whilst the award of a child's custody to a third-party, places him in a distinctly unusual or abnormal category.
> A court will only deprive a natural parent of custody and award it to a third party upon special grounds. Such special grounds include detrimental or undesirable effects or influences upon the physical, moral psychological or educational welfare of a child. The test is still not whether a third party can provide better materially or possesses more desirable attributes, but whether the parent or parents should be deprived of custody for any reason involving harm or danger to the child's welfare as mentioned above:."

Neither parent should be awarded custody as a "reward" or "punishment" to the other; rather, custody must be awarded to the parent most capable of meeting the children's daily developmental needs. The defendant has been the children's primary caregiver since the plaintiff left the matrimonial home. Other than her house being dirty, and a complaint that one of the children was once burnt whilst trying to make a snack, there was no compelling evidence which was presented to demonstrate that the children are consistently neglected, malnourished, or unsafe in her care.

The Court finds the plaintiff's allegations of neglect by the defendant to be exaggerated and in part unsubstantiated. The plaintiff's proposal to separate the youngest child from her siblings is also not in the children's best interests. Courts are slow to divide siblings absent exceptional circumstances, none of which exist here. The defendant has maintained the primary caregiving role for an extended period, and the disruption to the

children if removed from her care at this stage would likely be significant. The environment offered by the plaintiff, while materially comfortable, involves residence with extended family and a proposal to restrict the defendant's access in a "protected" context. The Court considers that the children benefit from a meaningful and unimpeded relationship with both parents, where safe and appropriate. Primary physical custody of all four children should remain with the defendant, subject to regular and meaningful access rights by the plaintiff as expanded in the order below.

Maintenance/child support

What emerged was that because it is his money he dictates what he buys for the children as grocery. Whilst the plaintiff's financial contributions are acknowledged and there is no dispute that he has been active in paying school fees and other material needs the evidence led by the defendant was that he had bought groceries only three times throughout the course of the year mainly dry ingredients.

The heart of the problem appears to be plaintiff's determination not to give the defendant money directly whatsoever and in his dictation of what he purchases as groceries for the children. The custodial parent has the authority to make day to day decisions for the children. Support as monetary obligation, makes sense because a care giving parent often understands the priorities of the household best. Cash allows for flexibility to meet the children's needs as the custodial parent can respond to what is actually needed as opposed to being confined to what has already been bought. It should not be about the payer's own preferences but on the outcomes for the children. Cash also shows or reflects trust and respect as opposed to micromanaging support. Whilst buying bulk groceries may seem helpful, it also often does not reflect the true cost of raising a child as many day to day items may still need to be supplemented such as milk, bread, fruits, vegetables to mention some. Bulk groceries can also be inefficient or wasteful as the buying parent can buy items that the children do not eat or may duplicate what is already there. This may explain why the defendant was using some of the duplicated groceries to either give away to relatives or to pay for services.

On maintenance, the amount the defendant seeks per child also takes into account that she will be able to put some of her limited income towards taking care of the children's needs as part of the joint responsibility that parents have to supporting their children. The plaintiff also indicated when he spoke to the Social Welfare Officer that he already spends at least US$200.00 a month towards supporting the children. The sum asked for is well within his

means. At a net monthly income of US$3500.00, the plaintiff earns much more than the defendant and he can afford to give her money for her to exercise autonomy as a mother on what groceries to buy for the children.

A monthly maintenance contribution of US$60.00 for each child to cover food in particular is definitely affordable and well within the plaintiff' means. In addition, the plaintiff should pay US$60.00 towards data for the children's home and return their telephones for that purpose. He should also continue to be responsible for school fees and uniforms and educational expenses on a current and ongoing basis.

Disposition

Accordingly, it is ordered that:

1. A decree of divorce is hereby granted.

2. The custody of the four minor children of the marriage, namely:
   a) NN a boy born 22 January 2015,
   b) AN a girl born 13 February 2017
   c) MN a girl born 19 March 2019 X and
   d) AN a girl born 17 November 2022
   is hereby awarded to the defendant subject to access rights by the plaintiff hereafter set out.
3. The plaintiff, shall have reasonable and meaningful access to the minor children as follows:
   (a) Every Friday after school or at 4 pm, whichever is earlier, until Sunday at 6 pm;
   (b) Extended access during school holidays being two weeks of every holiday and on special occasions as the parties may agree.
4. The plaintiff shall pay maintenance and stipulated expenses as follows:

   4.1 Payment of all school fees and related levies; the plaintiff shall pay directly to the respective schools all school fees, levies, examination fees, and compulsory educational charges for the minor children, as and when they fall due.

   4.2 The plaintiff shall pay to the defendant the sum of US$300.00 per month in cash against written acknowledgment by the defendant or by electronic transfer into an account nominated in writing by the defendant, broken down as US$60.00 per child per month, towards food and groceries for the minor children and US$60.00 towards purchase of data for the children's homework.

4.3 The plaintiff shall be responsible for the provision of adequate seasonal clothing, including school uniforms, shoes, and sportswear, for the minor children at least once per school year, or as reasonably required.

4.4 In the event of default in any payment due under this order, the arrears shall become immediately due and payable, and the defendant shall be entitled to enforce this order through the Maintenance Court, attachment, or contempt proceedings, without further recourse to this court.

4.5 The plaintiff shall pay all reasonable medical, dental, optical, and pharmaceutical expenses incurred in respect of the minor children, whether insured or uninsured.

4.6 The parties shall at all times act in the best interests of the minor children.

4.7 Pending transfer of the matrimonial home in accordance with the property settlement, the plaintiff shall pay all municipal rates and charges in respect of the said property as and when they fall due.

5. The parties being in agreement on sharing the matrimonial home, being stand 21051 Budiriro CABS, on a 50-50 basis the house shall be valued through a neutral valuator appointed through the Registrar of the High Court within 30 days of this order.

6, Each party shall pay their own costs.

TSANGA J…….

Maseko Law Chambers: Plaintiff's Legal Practitioners
Caleb Mucheche & Partners: Defendant's Legal Practitioners